Ack July 3.

Ack
July 3

No 82

In Batt.



U. S. Legation, Japan,
Tokei, 19 May, 1874.

Mr Bingham
to the
Hon. Secretary of State.

Subject.

U.S. Chargé at Peking writes that the Chinese Govt. disclaim having given any permission to the Japanese to go to Formosa. Mr Bingham informs Terashima of this, and is assured that no landing will be made on Formosa without consent of China. Three ships have gone from Amoy to Formosa.

Le Gendre returns to Yedo.

Enclosure.

No 82.

U. S. Legation, Japan,
Tokei, 19 May, 1874.

Sir:

I have the honor to inform you that on the 17th instant I received from S. Wells Williams, Esq., United States Charge d'Affaires (a.i.) at Peking, a communication, in which he informs me that the Chinese Authorities declare that no consent was given, verbally or otherwise, as is alleged by Le Gendre and others, to Soyeshima for Japan to invade Formosa with an armed force. I have this morning

The Honorable
The Secretary of State

morning verbally acquainted the Minister for Foreign Affairs of this, and have been assured by him, verbally, that although three of the Japanese ships have sailed from Amoy to Formosa they have gone under instructions not to attempt to land on that island if China objects, and in that event to return to Japan.

General Le Gendre did not go with these ships but has returned to Yedo. He called on me yesterday, and, among other things, insisted that the Act of June 1860, (XII Stats. at Large p. 72.) under which I had notified him not to proceed to Formosa with an armed Expedition

pedition hostile to China, is unconstitutional. I said to him that I was of a different opinion, and that I did not consider that I had any color of authority to pronounce upon the constitutionality of that or any other Act of Congress, nor had any citizen of the United States the right to disregard its requirements or to attempt to suspend its execution.

I am of opinion that Japan will so manage this seemingly unwise adventure to Formosa as to avoid any serious difficulty with China.

I may add that the Minister

Minister for Foreign Affairs
further informed me that
the three vessels before alluded
to, sailed to Amoy under
instructions to confer there
with the Chinese Governor; and,
having done so, departed for
Formosa with the orders
hereinbefore referred to.

I am, Sir,

Your obedient servant,

Mr. A. Bingham

P. S. I enclose herewith a
copy of the letter referred
to written to me by
Mr Williams.

Mr. A. Bingham

No 82. Enclosure.

Copy.

Legation of the United States,
Peking, April 24th, 1874.

His Excellency
John A. Bingham,
&c. &c. &c, Yedo.

Sir:

The reception of a telegram
from Gen. Legendre, dated Nagasaki
April 19th, leads me to write to
you what the Chinese officials
are doing. His telegram says,
"Don't allow Formosan matters to
"be so misrepresented by interested
"parties as to change friendly feelings
"between China and Japan", and,
evidently, presupposes a fuller knowl-
edge of Formosan matters than
I have yet received. I have no
information as to the position
Gen. LeGendre holds under the
Japanese Government, nor idea
as to the motives that lead
him

him to send this communication (to which I made no reply;) yet it seems proper to let you know of it. Taking its topic and its author and all the circumstances together, it is a curious thing on his part. The first notice which we had here of the designs of the Japanese was in a telegram from Sir Harry Parkes, the purport of which Mr Wade made known to the Foreign Office about a fortnight since. Full verbal Explanations were also made, so as to put the authorities on their guard. In reply to his note, Mr Wade has received the following, of which he has given me the Chinese text:—

"When the Japanese Minister
"Soyesima was in Peking last year,
"he never consulted with the mem=
"bers of the Foreign Office in rela=
"tion to taking troops to Formosa,
"and landing them on the east
"side of that island to chastise
the

"the aborigines; nor have we
"received any despatches from
"him] giving the reason why
"Japan is mustering her forces.
"But all aboriginal tribes, which,
"like these unsubdued people, are
"included within the territory
"of China, are within her ju=
"risdiction. Altho' we do not
"attempt to interfere with their
"peculiar usages; or bring them
"under the strict restraint of
"our laws, still the regions they
"occupy all form a part of the
"Middle Kingdom. All this is,
"doubtless fully known to Y.E.
"and we shall be obliged if you
"will discuss it in your reply
"to Sir Harry Parkes, so that he
"may know our sentiments."

With this characteristic reply these officials receive the announcement of a threaten=ed descent upon their bor=ders, and apparently expect,

that

that other nations are to do what is necessary to ward it off. China keeps herself so isolated that she is, of course exposed to be taken unawares by a hostile force; but in this case, one is drawn more to the other party to guess what motives stimulate her to such a measure. We hear that she intends to make a settlement in the southern end of Formosa; but as the circumstances of the maltreatment of the Lewchewans by the natives thereabouts, are not clearly known, it is not easy to decide as to the provocation. It is not to be expected that China will quietly permit a colony of Japanese to take possession of the district, or that the natives on the Eastern shore will welcome new masters, even if they do not cordially regard their present ones. I might suppose a case of a British vessel caught in a harbor of Alaska, and the crew killed and ship plundered by the Indians; and the Government at Washington might find it difficult to punish the perpetrators of the outrage. But it would resist and resent the assumption that the act was an Excuse and a reason for the British sending a force to seize and settle the locality in order to prevent a recurrence of such attacks. The present case seems to be similar in principle to this supposed case, and has one feature that is not found in that. Japan has just now included the Lewchewan and Madjiconnina Islands within her jurisdiction; and, so far as I am aware, the nature and reality of her authority over them is not well

well known, nor fully acknowledged by other nations. The United States has a compact with the Government of Studi by which the latter agreed among other things, to assist in saving life and property of American vessels wrecked on the Islands. In case they were recreant to this obligation and lives and property under our flag were destroyed by the people of Lew Chew, would we not visit Napa first to require redress, instead of going to Yedo directly? On this point there may have been some later negotiations, of which I have no knowledge. Yet while the Lew Chewan Envoys are still received at Peking, it is hardly a casus belli on the part of Japan, and seems stretching a point for her to take up this attack on their shipwrecked countrymen until they have done

done something. Where the parties are all so ignorant of many points in what we call the Law of Nations, I would not carry this analogy farther than it will bear; but these two great kingdoms of Eastern Asia are being taught by the Occidental Powers the nature of the rights and obligations which they have taken upon themselves in their treaties. It is a slow process, however, and some of the lessons must be sharp; but in this case, Japan has, it seems to me, thought rather of more of her rights than of her obligations toward her neighbor. — at least this is my inference from the little we yet know.

I have no idea to whom Genl. Legendre refers as "interested parties", and it indicates considerable confidence in their cause, if the Japanese con-

clude

clude that these warlike move=
ments will have no effect
on the friendly relations
between them and China. I
suppose that much of this
movement owes its stimulus
to the former Consul at Amoy,
and that his knowledge of the
regions in Southern Formosa
is to guide its operations
to some Extent.

It is not worth
while to speculate as to the
direct and indirect results
of such an occupation of Chinese
territory, upon the two leading
parties themselves or upon
foreign nations trading in
these seas, for the data are
not yet well enough known,
but I do not see how the
latter can altogether keep out
of the matter, if it eventuate
in hostilities.

Mr Wade has,

I believe, informed Sir H.
Parkes of all he has learned;
and as the latter would
probably inform his col=
leagues and the Japanese
officials of it, I had not
thought of repeating the
same things to you, until
this telegram came. I hear
that the Japanese minister
is likely erelong to come
to Peking, and then we
shall learn particulars.

With great respect, I am
Your Excellency's
Obedient Servant,
(Signed) S. Wells Williams.